

# Strata Living in Singapore

“STRATA BOOK  
-BY BCA

- WHAT IS A  
STRATA ROLL

-SINKING FUND  
VS MGT FUND

-Eg. BY-LAWS

Building and Construction Authority

A General Guide

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A person may only be appointed as the proxy holder for either 2% of the total number of lots in the development or 2 lots, whichever is higher.

If the proxy holds more than the cap, the additional proxy held is void. This amendment was made in light of the 'proxy wars' which occurred at general meetings due to the lack of limitations pertaining to proxies.

**For example,**

**A development with 701 strata lots would allow for a person to hold a maximum of 14 proxies.**

**In contrast,**

**A development with only 14 strata lots would allow for a person to hold a maximum of 2 proxies, since 2% of 14 would be a number much lower than 2.**

## SINGAPORE - LANDED

SPR – 5 YEARS – LDAU APPROVAL – SLA

X- RENT

X – SELL FOR 5 YEARS –FROM TOP/ COMPLETION DATE

X - > 15000sqft land (1,393.5 sqm )

X – other family members cannot buy restricted property

X - buy GCBA

## SENTOSA COVE- LANDED

SPR or FR - LDAU APPROVAL – SLA

X- RENT

X- >19,375.2sqft land (1,800 sqm )

X- other family members cannot buy

CAN- sell anytime



## **Guide on Estate Agents (Prevention of Money Laundering and Financing of Terrorism) Regulations 2021**

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## OPTION TO PURCHASE

OWNERS' NAME

OPTION FEE

1%

EXERCISE FEE

4%

14 DAYS

**'ABC LAW – CVY'**

Managed by  
' Appointed Bank

Sellers lawyer  
signature

Or

Buyers lawyer  
signature

**"SINGAPORE ACADEMY  
OF LAW"**

## [NOTICE 01-24] TEMPORARY RELAXATION OF OCCUPANCY CAP FOR RENTAL OF RESIDENTIAL PROPERTIES

1. The Housing & Development Board (HDB) and the Urban Redevelopment Authority (URA), had announced on 20 December 2023 that the occupancy cap for the following types of residential properties will be temporarily relaxed from six unrelated persons to eight unrelated persons:

- a) 4-room and larger HDB flats.
- b) Living quarters of HDB commercial properties (where the living quarters are equivalent to or larger than a 4-room flat).
- c) Larger private residential properties of at least 90 sqm.

2. This temporary relaxation from 22 January 2024 to 31 December 2026 seeks to alleviate pressure on the rental market, as it provides property owners with the flexibility to rent to more tenants who are in need of housing/bed spaces.

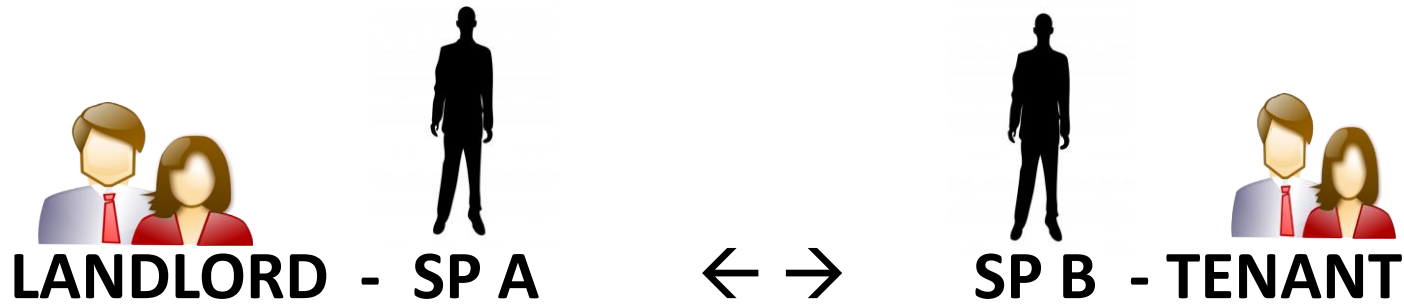
3. Property owners who currently house up to six unrelated persons would need to apply to HDB (for HDB flats) or URA (for private residential properties) to include additional tenants, up to a total of eight unrelated persons per accommodation.

## CHECKLIST FOR LEASE OF RESIDENTIAL PROPERTY FOR COMPLIANCE WITH THE IMMIGRATION ACT AND WOMEN'S CHARTER

|                                                                                                                                                                  |                                                                                                                                                                             |                        |         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|---------|
| Address of Property:                                                                                                                                             |                                                                                                                                                                             |                        |         |
| Rental start date:                                                                                                                                               |                                                                                                                                                                             | Rental end date:       |         |
| Where any tenant or occupier is a <u>Singapore Citizen or Singapore Permanent Resident</u> , to perform the following checks on <u>each</u> tenant and occupier: |                                                                                                                                                                             |                        |         |
|                                                                                                                                                                  |                                                                                                                                                                             | Checked<br>(Yes or No) | Remarks |
| 1                                                                                                                                                                | Check original NRIC(s) of the tenants and occupiers for forgery and make copies.                                                                                            |                        |         |
| 2                                                                                                                                                                | Check photograph(s) on NRIC(s) against the actual person(s) to confirm identity.                                                                                            |                        |         |
| 3                                                                                                                                                                | Verify the validity of the NRIC(s) with ICA (through ICA website) and keep copies of the ICA screen capture or acknowledgement slip.                                        |                        |         |
| Where any tenant or occupier is a <u>foreigner</u> , to perform the following checks on <u>each</u> tenant and occupier:                                         |                                                                                                                                                                             |                        |         |
| 1                                                                                                                                                                | Check original Immigration pass / work pass / student pass and make copies.                                                                                                 |                        |         |
| 2                                                                                                                                                                | Cross check particulars in these passes with original passport(s) and check photograph(s) against the actual person(s) to confirm identity. Keep copies of the passport(s). |                        |         |
| 3                                                                                                                                                                | Verify the validity of the passes with MOM database and/or ICA database, and keep copies of the MOM/ICA screen capture or acknowledgement slip.                             |                        |         |

If TENANT is a  
SINGAPORE  
CITIZEN →  
or SPR

If TENANT is a  
FOREIGNER →



**Q14 Can the In-Principle Approval (IPA) letters issued by Ministry of Manpower be recognised in lieu of the original work/immigration passes?**

A14: The underlying principle of the relevant provisions in the Immigration Act 1959 and the Women's Charter 1961 is that property owners and tenants should take responsibility in ensuring that the residential property is not misused for vice activities or harbouring immigration offenders. 4 Section 57 of the Immigration Act 1959 sets out the due diligence requirements, and Section 148 of the Women's Charter 1961 provides illustrations on the reasonable diligence requirements. Because the in-principle approval (IPA) letter cannot be used to verify a foreigner's immigration status as required under the Immigration Act 1959, we do not recommend using the IPA letter in lieu of the long term visit pass, student pass, work pass or other passes.



## Land Acquisition Act

1. An Act to provide for the acquisition of land for:
  - a) for any public purpose.
  - b) for any work in the opinion of the Minister, is of public benefit or of public utility or in the public interest; Example expressways, MRT lines, ports, airports or
  - c) for any residential, commercial or industrial purposes
2. Compensation to be made on the **market value** of the acquired land on the date of acquisition
3. Owner's right to appeal to **Appeal Boards** (sitting or retired judges of the Supreme Court) within **28 days** against the Collector (SLA).  
  
→ Collector and the Owner engage their own lawyer and valuer for the Appeals Board hearing.
4. Both the Collector and the appellant may appeal to the Court of Appeal if they are dis-satisfied with the decision of the Appeals Board. The decision of the Court of Appeal is final.

